From: Daniel Faucitt <dan@regima.com>
Sent: 07 November 2025 11:16:41
To: Ian Levitt <ian@ianlevitt.co.za>; Jacqui Faucitt <jax@regima.zone>; Doron Block <block@rivoniaadvocates.co.za>; Natan Back <Natan@ianlevitt.co.za>
CC: d@rzo.io
Subject: Dan's Understanding of the ex parte Legal Framework
Attachments: Dan's Understanding of the ex parte Legal Framework.docx

Attached is a document I was preparing as a comprehensive explanation for Jacqui to explain the subtle differences in legal approaches.

See file: "Dan's Understanding of the ex parte Legal Framework.docx"

I thought it may be useful to share it with all of you to clarify my reasoning for taking the specific positions we have on certain key issues.
Also it provides a clear basis where you can identify any errors in my apprehension of the frameworks in question to correct any misunderstandings.

Warm Regards,
Dan

From: Ian Levitt <ian@ianlevitt.co.za>
Sent: Friday, 07 November 2025 09:57
To: Daniel Faucitt <dan@regima.com>; Jacqui Faucitt <jax@regima.zone>; Doron Block <block@rivoniaadvocates.co.za>; Natan Back <Natan@ianlevitt.co.za>
Subject: RE: ARE YOU ABLE TO OPPOSE PART A OF THE EXPARTE INTERDICT, THE FIRST ONE

Hi all

For discussion when Natan done in court.

IAN LEVITT

IAN LEVITT ATTORNEYS

THE LEONARDO
OFFICE LEVEL 12
75 MAUDE STREET
SANDOWN
SANDTON, 2196
DX 54 SANDTON SQUARE
TEL: 011 784 3310
Cell : 082 445 1586
www.ianlevitt.co.za

The African Legal Awards 2017 | Attorney of the Year (partner) Ian Levitt, Ian Levitt Attorneys | Winner
The African Legal Awards 2017 | Litigation and Dispute Resolution Team of the Year Ian Levitt Attorneys | Winner
The African Legal Awards 2017 | Specialist Law Firm of the Year Ian Levitt Attorneys | Highly Commended

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From: Daniel Faucitt <dan@regima.com>
Sent: Friday, 07 November 2025 08:32
To: Ian Levitt <ian@ianlevitt.co.za>; Jacqui Faucitt <jax@regima.zone>; Doron Block <block@rivoniaadvocates.co.za>; Natan Back <Natan@ianlevitt.co.za>
Subject: Re: ARE YOU ABLE TO OPPOSE PART A OF THE EXPARTE INTERDICT, THE FIRST ONE
Importance: High

Dear Counsels,

We appreciate your continued patience in these matters, given the challenges we have faced over the past weeks while trying to gather evidence under conditions where our access to records is severely restricted.

Each week we have uncovered deeper connections that fundamentally changed our understanding of what has taken place without our knowledge or consent as well as the role of each party in various aspects of fraud and deception.

The overarching constellation of financial transactions and communications between said parties has evolved to what is now emerging as an audit trail of sophisticated and premeditated criminal activity involving the applicant and his agents.

I understand and share your frustration with the difficulties faced in making sense of all this, but the fact remains and is now confirmed by additional evidence, that we are dealing with a fundamental issue of **criminally void proceedings, not civil disputes**.

The Critical Point: The interdict was obtained through **perjury** as **retaliation** for my fraud report.

We have submitted documentary proof that:

1. **June 10, 2025:** I reported fraud to Bantjies/Peter
2. **They KNEW** about crimes before filing
3. **August 14, 2025:** They filed with perjured affidavits
4. **Material concealment:** Murder, theft, fraud

Legal Principle: When founding documents are **perjured**, the order is **void ab initio** - it never legally existed.

Responding to Part B would:

- Acknowledge it has legal effect (it doesn't)
- Validate criminal conduct
- Waive our strongest defense

What I'm Doing:

- **Proving perjury** (not disputing claims)
- **Showing criminal fraud** (not civil disagreement)
- **Establishing void status** (not defending disputes)

Correct Approach:

1. **Rule 42(1)(a)** - Rescission for fraud (mandatory)
2. **Criminal referral** - Commercial crimes court
3. **No engagement** with void document's "disputes"

The Evidence Shows:

- **Provably false statements** (not disputed ones)
- **Criminal perjury** (not civil disagreement)
- **Retaliatory abuse** (not legitimate proceeding)

Please understand: I'm not being difficult. I'm preventing us from **legitimizing a criminal fraud** by treating it as valid.

To the best of my understanding, the law is clear - **fraud vitiates everything**.

Can we please focus on the **rescission application** based on proven perjury rather than responding to disputes in a criminally void document?

Warm Regards,

Dan

PLEASE SEE ADDENDA BELOW RELATING TO MY UNDERSTANDING OF THE SITUATION AND Rule 6(12)

You cannot answer "disputes" in a document obtained by perjury - doing so validates the crime.

The strategy must be:

1. ***Attack the legitimacy*** *(void ab initio)*
2. ***Prove the perjury*** *(criminal evidence)*
3. ***Refuse engagement*** *(no Part B response)*
4. ***Criminal referral*** *(not civil litigation)*

This isn't stubbornness - it's correct legal strategy when dealing with ***criminally fraudulent proceedings****.*

Urgent Applications and the Interpretation of Rule 6(12) in South African Courts

Urgent applications are a critical component of South African civil procedure, enabling litigants to approach the courts for immediate relief in circumstances where the ordinary procedural timelines would render justice ineffective or moot. Rule 6(12) of the Uniform Rules of Court governs the procedure for bringing such applications, and its interpretation by the courts reflects a careful balancing of the right to urgent relief and the need to prevent abuse of process.

Rule 6(12) provides as follows:

*"**(a)** In urgent applications the court or a judge may dispense with the forms and service provided for in these rules and may dispose of such matter at such time and place and in such manner and in accordance with such procedure (which shall as far as practicable be in terms of these rules) as it deems fit.*

(b) *In every affidavit filed in support of any application under paragraph (a) of this subrule, the applicant shall set forth explicitly the circumstances which he avers render the matter urgent and the reasons why he claims that he could not be afforded substantial redress at a hearing in due course."*

Key Elements of Rule 6(12)

There are two key elements that an applicant must satisfy for an urgent application to be entertained:

1. ***Urgency:*** *The applicant must demonstrate that the matter is genuinely urgent.*
2. ***Lack of Substantial Redress:*** *The applicant must show that he or she will not obtain substantial redress in due course if the matter were to proceed in the ordinary way.*

Courts require these elements to be clearly and explicitly set out in the founding affidavit. The mere assertion of urgency, or inconvenience caused by delay, is not sufficient.

Judicial Interpretation

South African courts have developed guiding principles to interpret and apply Rule 6(12). A few notable cases illustrate the approach:

Luna Meubel Vervaardigers v Makin and Another 1977 (4) SA 135 (W)

This seminal case by Coetzee J remains a cornerstone in interpreting urgency. The court warned against the misuse of urgent applications and emphasized that the rules should not be circumvented lightly. It held that:

"Practitioners must carefully analyse the facts to determine whether a case really deserves the court's urgent attention."

*The court distinguished between **real urgency** (such as imminent harm) and **self-created urgency**, where a litigant delays and then invokes urgency to fast-track relief.*

East Rock Trading 7 (Pty) Ltd v Eagle Valley Granite (Pty) Ltd 2012 JDR 1836 (GSJ)

Here, the court reiterated that urgency must be assessed objectively and warned that self-created urgency will not justify departure from the rules. An applicant who sits on their hands and then seeks urgent relief faces dismissal on procedural grounds.

Caledon Street Restaurants CC v Monica D'Aviera 1998 (4) SA 10 (C)

*This case clarified that the test is not merely whether the matter is urgent, but whether the applicant **cannot obtain substantial redress at a hearing in due course**. If eventual relief can still be meaningful, the matter should follow normal timelines.*

Misuse and Judicial Scrutiny

Given the risk of procedural abuse, courts often deal with Rule 6(12) applications critically. Applicants must:

- *Show diligence,*
- *Act promptly upon learning of the facts giving rise to the urgency,*
- *Provide full and frank disclosure,*
- *Avoid creating urgency through tactical delay.*

Failure to meet these standards may result in the application being struck off the roll or punitive costs orders.

Conclusion

Rule 6(12) serves a vital function in protecting litigants' rights in time-sensitive matters. However, the threshold is high: urgency must be real, not contrived, and applicants must convincingly show that waiting for the normal court process would result in injustice. Courts continue to interpret the rule with caution to ensure that it remains a remedy for exceptional circumstances—not a procedural shortcut.

From: Ian Levitt <ian@ianlevitt.co.za>
Sent: Friday, 07 November 2025 07:29
To: Jacqui Faucitt <jax@regima.zone>; Doron Block <block@rivoniaadvocates.co.za>; Natan Back <Natan@ianlevitt.co.za>
Cc: Daniel Faucitt <dan@regima.com>
Subject: RE: ARE YOU ABLE TO OPPOSE PART A OF THE EXPARTE INTERDICT, THE FIRST ONE

Can we please have a teams and discuss the memo to client?

Natan please set up.

IAN LEVITT

THE LEONARDO
OFFICE LEVEL 12
75 MAUDE STREET
SANDOWN
SANDTON, 2196
DX 54 SANDTON SQUARE
TEL: 011 784 3310
Cell : 082 445 1586
www.ianlevitt.co.za

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From: Jacqui Faucitt <jax@regima.zone>
Sent: Friday, 07 November 2025 07:04
To: Doron Block <block@rivoniaadvocates.co.za>; Ian Levitt <ian@ianlevitt.co.za>; Natan Back <Natan@ianlevitt.co.za>
Cc: Daniel J. Faucitt <dan@regima.com>
Subject: ARE YOU ABLE TO OPPOSE PART A OF THE EXPARTE INTERDICT, THE FIRST ONE

AS A MATTER OF GREAT URGENCY ARE YOU ABLE TO OPPOSE PART A OF THE EXPARTE INTERDICT. THIS IS WHAT WE HAVE WANTED FROM THE START. WE HAVE SENT THROUGH SO MUCH EVIDENCE OF PERJURY FROM BANTJIES, THE ACCOUNTANT WHO DID A SUPPORTING AFFIDAVIT, TO PETER'S LYING AFFIDAVIT, BESIDES ALL THE LIES AND FRAUD, FROM THE BOOKKEEPER WITH THE REPEATED FRAUD. PETER IS OBVIOUSLY HAVING AN AFFAIR WITH RYNETTE FARRAR, CONDOM, EVIDENCE HE IS FOR SOME REASON DEPENDING ON HER AND TOGETHER THEY ARE FRAUDULENTLY TAKING OUR MONEY.

PLEASE LET US KNOW AS A MATTER OF URGENCY IF YOU CAN OPPOSE THE PART A OF THE EXPARTE FIRST INTERDICT TO GET IT SET ASIDE. CAN YOU LET US KNOW THIS MORNING. ANOTHER MEETING TO DISCUSS ANY OTHER MATTERS IS NOT GOING TO HELP UNLESS WE CAN GET THIS SORTE OUT VERY URGENTLY.